

The *Woodhill* plaintiff filed suit, which included causes of action for libel, slander, and violation of the unfair competition law. The trial court denied the defendant's Anti-SLAPP motion, finding that none of defendant's challenged statements involved the public interest. (*Woodhill Ventures, LLC v. Yang* (2021) 68 Cal.App.5th 624, 629-630.) Even if the statements constituted protected activity, the trial court found plaintiff had shown a probability of prevailing on the merits. (*Id.* at p. 630.)

The Court of Appeal affirmed, concluding that the defendant's statements did not involve the public interest, as defined under section 425.16 of the Code of Civil Procedure. (*Woodhill Ventures, LLC v. Yang* (2021) 68 Cal.App.5th 624, 630.) First, the *Woodhill* court rejected the defendant's contention that his statements involved an issue of public interest because they were about the dangers of candy confusion, or children mistakenly eating pills they believed to be candy.

The *Woodhill* court explained that there must be some degree of closeness between the challenged statements and the asserted public interest, but a tangential relationship would not be enough. (*Woodhill Ventures, LLC v. Yang* (2021) 68 Cal.App.5th 624, 632.) The *Woodhill* court went on to hold that defendant's "statements did not seek public discussion of anything. They aimed to whip up a crowd for vengeful retribution. They were an unprotected effort 'to gather ammunition' in his spat with [plaintiff]. [Citation.]" (*Woodhill Ventures, LLC v. Yang* (2021) 68 Cal.App.5th 624, 632-633.)

Next, the *Woodhill* court rejected defendant's claim that a public interest was implicated because both he and plaintiff were in the public eye. (*Woodhill Ventures, LLC v. Yang* (2021) 68 Cal.App.5th 624, 633-634.) Relevant here, the court concluded that defendant could not rely on the fact he published his statements to many people, as a private dispute could not be transformed into a matter of public interest through wide communication to the public. (*Id.* at p. 633.) "Shouting makes the volume loud. It does not make the content worthy. [Citation.]" (*Woodhill Ventures, LLC v. Yang* (2021) 68 Cal.App.5th 624, 633.)

Finally, the court held that the defendant's "quest for revenge did not give consumers information beyond his complaints about his one cake order. Consumers are interested in the reactions of other consumers, but a single report is the classic small sample, subject to the classic small sample error. [Defendant's] complaints about the decoration of a cake are not a public interest discussion." (*Woodhill Ventures, LLC v. Yang* (2021) 68 Cal.App.5th 624, 634.)

Here, Defendants are accused of defaming Plaintiffs by referring to Plaintiff Nguyen as a criminal defendant, which has "affected Plaintiffs' reputation and hindered Plaintiffs' ability to fundraise for BPSOS." (Complaint, ¶¶ 26, 34, 44.) It is further alleged these defamatory statements have a tendency to expose "Plaintiffs to public contempt, ridicule, aversion, or disgrace, or to induce in the minds of a substantial number of members of the community an opinion of Plaintiffs as criminals," and they "tend to deter other people from associating or dealing with Plaintiffs, both personally and professionally." (Complaint, ¶¶ 32, 34, 42, 44.)

However, there is no evidence presented that Defendants' statements sought public discussion of anything. Instead, they were an unprotected effort to gather ammunition in their spat with Plaintiffs. (*Woodhill Ventures, LLC v. Yang* (2021) 68 Cal.App.5th 624, 632-633.) The fact that the article may have reached hundreds of thousands of readers also does not transform a private dispute into a matter of public interest. (*Woodhill Ventures, LLC v. Yang* (2021) 68 Cal.App.5th 624, 633.) Finally, any information Defendants disseminated about Plaintiffs did not extend beyond their summary of the dispute in the related lawsuit. A "single report is the classic small sample, subject to the classic small sample error," such that Defendants' characterizations of Plaintiff Nguyen as being a criminal defendant in the related lawsuit. (*Woodhill Ventures, LLC v. Yang* (2021) 68 Cal.App.5th 624, 634.)

In sum, Defendant has not met her initial burden of establishing her conduct, i.e., the republication of Defendant Le's articles, constitutes protected activity.

In her Reply, Defendant argues the article constitutes an issue of public interest because: (1) Plaintiffs are limited purpose public figures because they voluntarily injected themselves into a public controversy; (2) Department C23 of this Court found that the related *Le v. Nguyen* lawsuit involved a public controversy; and (3) Defendant Le's article was in response to Plaintiffs' publicly published articles, which further establishes a public controversy.

None of these arguments, or evidence, were included in the Motion, and it is improper for Defendant Ngo to raise these new arguments, and to present new evidence (such as the Declaration of Defendant Le, as well as the Declaration of Hanh Tran), for the first time in Reply. (See *Raceway Ford Cases* (2016) 2 Cal.5th 161, 178 ["We generally do not consider arguments raised for the first time in a reply brief."]; *Sweetwater Union High School Dist. v. Julian Union Elementary School Dist.* (2019) 36 Cal.App.5th 970, 987 ["Generally, arguments raised for the first time in a reply brief are forfeited."]; *Mansur v. Ford Motor Co.* (2011) 197 Cal.App.4th 1365, 1387-1388 [in general, "[w]e will not consider arguments raised for the first time in a reply brief, because it deprives [respondents] of the opportunity to respond to the argument"].)

Further, while Plaintiffs and Defendants may be involved in multiple lawsuits pertaining to refugee assistance, and while the publications by all parties relate to said refugee assistance, the gravamen of this lawsuit, and of the disputed articles, pertain to a private dispute between Plaintiffs and Defendants, namely, whether Defendants defamed Plaintiffs by referring to Plaintiff Nguyen as a criminal defendant. That the articles tangentially involve refugee assistance is insufficient to transform a private dispute into a matter of public interest.

Thus, Defendant's Anti-SLAPP Motion is denied.

Plaintiffs to give notice.